

government within its assigned sphere of responsibility, free from risk of control, interference, or intimidation by other branches. *United States v. Nixon, supra*; *Gravel v. United States*, 408 U. S. 606, 617 (1972). Even prior to the adoption of our Constitution, as well as after, judicial review of legislative action was recognized in some instances as necessary to maintain the proper checks and balances. *Den on the Dem. of Bayard & Wife v. Singleton*, 3 N. C. 42 (1787); *Cases of the Judges of the Court of Appeals*, 8 Va. 135 (1788). Cf. *Marbury v. Madison*, 1 Cranch 137 (1803). However, the Judiciary always must be hesitant to probe into the elements of Presidential decisionmaking, just as other branches should be hesitant to probe into judicial decisionmaking. Such judicial intervention is not to be tolerated absent imperative constitutional necessity. *United States v. Nixon, supra*, at 709-716.<sup>4</sup> The Court's opinion correctly observes that judicial intrusion through private damages actions improperly impinges on and hence interferes with the independence that is imperative to the functioning of the office of a President.

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<sup>4</sup>JUSTICE WHITE suggests that prior to today, Presidents, prosecutors, judges, congressional aides, and other officials "could have been held liable for the kind of claim put forward by Fitzgerald—a personnel decision allegedly made for unlawful reasons." *Post*, at 767, n. 2 (emphasis added). But the law does not permit a plaintiff to recite "magic" words in pleadings and have the incantation operate to make these immunities vanish. JUSTICE WHITE errs fundamentally in treating all of the above officials as if the scope of their authority were identical. The authority of a President as head of the Executive Branch of our Government—a wholly unique office—is far broader than that of any other official. As the Court notes, a President has authority in the course of personnel changes in an executive department to make personnel decisions. If the decision is wrong, statutory remedies are provided. See n. 5, *infra*. This is not to say that, in a given case, it would not be appropriate to raise the question *whether* an official—even a President—had acted within the scope of the official's constitutional and statutory duties. The doctrine of absolute immunity does not extend beyond such actions.